

The commencement and conclusion of the answer shall be in the form prescribed in Schedule D. to these Orders appended. It must be verified by the oath of the Defendant, as heretofore, but needs not be signed by counsel. It shall consist of a clear and concise statement of such defence or defences as the Defendant may desire to present. The silence of the answer as to any of the statements of the bill shall not be construed into an implied admission of their truth; and statements introduced into the answer, for the purpose merely of preventing such implied admission, shall be considered impertinent. Provided always, that nothing herein contained shall be construed so as to prevent a Defendant from introducing into his answer any matter which may be material, for the purpose of preventing an injunction from being granted, or of procuring the same to be dissolved.

Answer must
be sworn to.

Must be con-
cise.

Omission to
deny Bill, no
admission.

Impertinence.

The following is the form given in the Schedule.

COMMENCEMENT AND CONCLUSION OF ANSWER.

The answer of C. D., one of the Defendants to the bill of complaint of A. B., complainant.

This Defendant, for defence to the said bill, says that, &c. (state the defence as succinctly as can be done consistently with due certainty, and in any language suitable to the purpose.)

This Defendant therefore humbly insists that (where the Defendant requires any peculiar relief, it should be specially stated), and prays to be hence dismissed with his reasonable costs in this behalf wrongfully sustained.

A second or supplemental answer could only be filed, according to the old practice, under very special circumstances, and was very rarely permitted. The practice is somewhat relaxed under the following Orders.

It shall be competent to the Court, at any time, in furtherance of justice and upon such terms as may be proper, to permit a supplemental answer to be filed, for the purpose of putting new matter in issue. Leave to file a supplemental answer shall be applied for by motion, which shall set forth the proposed answer, and shall state the ground upon which the indulgence is asked.

Notice of this motion must be served upon the solicitors of all parties to this suit; and, when any party has no solicitor, then upon such party, unless the Court under special circumstances shall dispense therewith; and it must be supported by such evidence as shall satisfy the Court of the propriety of permitting such supplemental

1850.
XXIX.
Supplemental
answer—on
motion.

Motion how
made.